

THIRTY NINE YEARS LEASE SUBJECT TO EXTENSION OF LEASE  
FOR A PERIOD OF THIRTY YEARS FROM THE DATE OF 31st Oct. 1950

THIS LEASE made this 22nd day of April 1950 in the year One thousand Nine hundred and forty-eight between the Governor-General of India (hereinafter called the Lessor which expression shall, unless the context requires another and different meaning, include his successors and assigns) of the one part and s/o L. GANDA MAL, RAJPUT, C/o Nandan Engineering & Tool Products of the other part

(hereinafter called the lessee which expression shall be taken to mean and include the said RAJPUT his heirs, executors, administrators, representative and permitted assigns except when the context requires another and different meaning) of the other part;

WHEREAS the lessor has agreed to demise on payment of an initial premium of Rs. 14,000/- the land fully described in the schedule hereunder written upon the terms and conditions hereafter appearing and contained.

NOW THIS DEED WITNESSETH that in consideration of the said premium and the rent hereinafter reserved and of the covenants by the Lessee hereinafter contained the Lessor doth lease unto the Lessee all that piece of land described in the Schedule hereunder together with all rights, easements and appurtenances to the same belonging save and except all mines and mineral products buried treasure, coal, petroleum, oil and quarries whatsoever in under or within the said land with liberty for the lessor and his lessees, licensees agents and workmen and all other persons acting on his behalf to dig, search for, obtain and carry away the same on making reasonable compensation to the Lessee on account of any disturbance or damage that may be caused thereby to the surface of the said land and that such compensation shall in case of dispute be determined by an Officer appointed by the Lessor for this purpose, as nearly as may be in accordance with the provisions of the Land Acquisition Act or Regulations for the time being in force, whose decision thereon shall be final.

TO HOLD the said land unto the Lessee for the term of 90 years from the date of this lease i.e. Yielding and paying for the first rental period of the said term namely that ending on the 31st of March, the clear half-yearly rent, of Rs. payable on the first day of April and 1st day of October respectively each year on account of the half year ending with 31st day of March and 30th day of September respectively and yielding and paying for the second and subsequent rental periods of the said term rents to be fixed by the Lessor in the manner provided in Clause 11 (b) hereof a proportionate part of the rent shall be payable for part of half year, and the Lessor doth hereby to the intent that the burden of the covenants made with the said land and may bind the assignee thereof for the time being covenant with the Lessor:

I (i) to pay the said rent on the days and in the manner hereinbefore appointed for the payment thereof and also to pay all taxes, rates and assessments that now are or may hereafter during the said term be imposed upon the said land or any building or upon the Lessor or the Lessee, his sub-lessee or assignee in respect thereof under any enactment for the time being in force;

(ii) to erect upon the said land and at all times during the said term to maintain thereon a good and substantial building according to the bye-laws Rules and Regulations framed by the local authority having jurisdiction in the area in which the said land is situated, (the excess on local authority shall include the Delhi Improvement Trust) or in accordance with any directions of an Officer appointed by the Lessor in this behalf or in accordance with any other law, rule or regulation for the time being applicable thereto in respect of materials to be used in and the method of construction of buildings in the quarter in which the said land is situated. That the Lessee shall submit plans, sections, elevations and specifications for the construction of the building to be erected upon the said land for the approval of an officer appointed by the Lessor in this behalf, in duplicate, and shall not start the work of construction unless and until the approval of the said Officer has been obtained in writing. The Lessee shall not make any alteration and additions to the building so approved by the said Officer either externally or internally without first obtaining the permission of the said Officer in writing;

(iii) before the buildings on the said land are occupied or ready for occupation to connect the same with the gravitating sewers and to lay on water to the said buildings, in the manner directed by an Officer appointed by the Lessor in this behalf and to employ a plumber duly approved by the said Officer to make and do all such connections and works provided that when the sewage or water systems are not extended to the said quarter at the time the said buildings are occupied or

ready for occupation, the Lessee shall, within 30 days from the extension of the sewage and water systems to the said quarter, connect gravitating sewers and lay on water in the manner and according to the instructions and through the agency abovementioned;

(iv) to complete the said buildings within six months from the date of this lease (which period of six months may from time to time be extended by an Officer appointed by the Lessor or in this behalf) to the satisfaction of an officer appointed by the Lessor in this behalf and maintain the premises and all buildings thereon in a sanitary condition according to the directions of the said officer;

(v) not to erect more than one building upon the said land and except such outhouses and servants' quarters as may be approved by an officer appointed by the Lessor in this behalf;

(vi) not to use the said land and buildings that may be erected thereon during the said term for any purpose other than the purpose of constructing a house without the previous consent in writing of an officer appointed by the Lessor in this behalf; provided that the lease shall become void if the land is used for any purpose other than that for which the lease is granted not being a purpose subsequently approved by the said officer;

(vii) not to sub-divide the said land or to part with the possession or transfer by sale mortgage gift or otherwise or sublet the said land or building thereon or any part thereof. Provided that after the expiry of the first 20 years of the lease the Lessee may with the previous permission in writing of an officer authorized by the lessor in this behalf sublet the said land or building or part thereof after giving the lessor the first opportunity to transfer the same.

and if the lessee shall without sufficient cause neglect to make such changes in the manner aforesaid with the Lands Officer or other officer appointed by the local authority for this purpose the Lessor may impose on him for each such case of neglect a penalty not exceeding Rs. 100- and the said Lessor may in addition to the other remedies available to them under these provisions enforce the payment of such penalties in the same manner as in the case of arrears of land revenue;

(x) that the Lessor and all persons acting under his orders shall be at liberty at all reasonable times in the day time during the said term to enter upon the said land or any buildings that may be erected thereon for any purpose connected with the lease;

(xi) at the determination of the tenancy to yield up the demised premises with all buildings erected thereon and landlords fixtures affixed thereto, the Lessor shall pay to the Lessee the value of the said buildings and fixtures at the date of determination of the tenancy, such value to be determined in the absence of agreement, by a sole Arbitrator agreed upon by both the parties or in the absence of such agreement by two arbitrators, one to be appointed by each party. The provisions of the Arbitration Act, 1940 and any statutory modifications thereof shall apply to any such arbitration.

(xii) If during the period of the lease the premises are required for a public purpose or for any administrative purpose by the Govt. the lessor shall, at the expiry of a notice of fifteen days to the effect that the said premises are required for such purpose to be served upon the lessee by an officer appointed by the lessor in this behalf, be at liberty to take possession of the land together with all buildings structures and appurtenances. The lessee shall be entitled to compensation in respect of the buildings and structures on the demised land but he shall not be entitled to any compensation for his interest in the said land except refund of a proportion of the premium. The compensation payable under this clause shall, (in case of dispute,) be determined by the arbitrator by such award as he may appoint for the purpose, as nearly as may be in accordance with the provisions of the Land Acquisition Act or regulations for the time being in force and the decision of the lessor or such officer shall be final and conclusive.

(xiii) any sum of money due to or claimable by the Lessee in respect of the land hereby demised shall be recoverable by the Lessor as an arrear of land revenue.

11. Provided always that if the said rent or any part thereof shall be in arrears and unpaid for one calendar month after the same shall have become due whether or not the same have been demanded or not or if the Lessee makes default in payment of any such arrears, then the Lessor or his agent or assigns or if the Lessee shall not observe and perform any of the covenants, conditions or obligations hereinbefore contained or if the Lessee shall be guilty of any breach of any of the provisions hereinbefore contained, the Lessor or his agent or assigns may notwithstanding the waiver of any previous breach or breach of any of the provisions hereinbefore contained take possession of this land and the building and the interest therein and may then and thereupon initiate appropriate proceedings for recovery of rent, penalty or other sums payable by the Lessee to the Lessor under these provisions.

III. And the Lessor doth hereby covenant with the Lessee—

(a) that notice of the cancellation of the lease under clause I (xi) and II hereof shall as the Lessor may deem fit either be sent by registered post to the last known address of the Lessee or his permitted assignee and the last known address of any mortgagee whose mortgage has been registered under Covenant I (ix) hereof be addressed to the Lessee or his permitted assignee or mortgagee as such affixed to a conspicuous part of the property and that in case of cancellation of the lease under clause II if before any third party has acquired any rights in the said lease the lessee or his permitted assignee shall pay to the Lessor all rents then in arrear together with interest thereon at 1% per mensem and other sums due together with all costs incurred by the Lessor in connection with the cancellation or re-entry or subsequent disposal of the land leased and shall remedy to the satisfaction of any other authorised by the Lessor in this behalf any breach of any other covenant which may have occurred the Lessor may waive the forfeiture and if actual possession has been taken by the Lessor to restore to the Lessee to hold for the remainder of the term of the lease upon the covenants herein contained the land together with the building and fixtures thereon on the date of such re-entry save such if any as may have been destroyed by fire or otherwise the Lessor not being liable for any depreciation for want of repair or deterioration that may have taken place in the premises or the buildings or other things thereon or therein save and except loss and damage if any maliciously done or caused by his servants or agents on such re-entry.

(b) that the Lessee paying the rent hereby reserved and observing and performing the several covenants and stipulations herein on his part contained shall peaceably hold and enjoy the demised premises during the said lease without any interruption of the Lessor or any person right fully claiming under him.

(c) that on or before the expiration of each rental period of 10, 20, 30 or 60 years respectively from the 1st day of April of the calendar year in which this lease is granted the Lessor will at the request and cost of the Lessee and so on from time to time hereafter at the end of each such successive further term of years execute in favour of the Lessee a new lease by an endorsement on the original lease or otherwise of the premises hereby demised by way of renewal for a further term as specified hereinbefore; provided that the aggregate or total term of the demise shall not exceed the period of 90 years from the date of the lease; provided further that the rent of the said premises hereby demised is hereby expressly made subject to enhancement on the granting of each renewed lease but the enhancement on first renewal shall not exceed 50% of the original rent and the enhancement on the second and subsequent renewals shall not exceed 50% of the rent fixed on the renewal previous to the one to which it may be applied.

IN WITNESS WHEREOF

SCHEDULE

Signed by SECRETARY (REVENUE & COMPLETION)  
TO THE CHIEF COMMISSIONER, DELHI  
on behalf of the Governor General of India in the presence of

Model Press, Delhi—2000—11-11-18.

No. 1 Witness  
M. L. K. G. G. G. G.

Prop: Indian Industrial Corporation  
Mukund Prasad Singh

No. 2 Witness

Blagwan Das S. Talwar  
to Indian Industrial Corporation

Presented my Capt. Ishwar Das Captain R.O.  
S. B. Das Capt. R.O. Capt. R.O. Captain R.O.  
1000 Boanchoy ... Road ... the ...  
of the ... Dec: 1900 ... 1900

...  
...  
...

Execution admitted by said ... Capt.  
Ishwar Das Capt. R.O. ...  
... through <sup>his</sup> ...  
... of the R. I. A. C. C. I. A. F.  
... 19th Dec: 1949.

... transactions & ...  
... the ...  
...  
... to ...

...  
...  
...

Registered ... 298 in addition  
book no. 1 ... 3 on pages 197 & 198  
... 21st Dec 1950 ...  
are taken before me ...

...  
...

THIS AGREEMENT made on the 29/1/50

between the President of India hereinafter called "the Lessor" and  
expression shall, where the context so admits, include his authorized and

assigns) of the one part and Capt. C. J. Jeyaraj son of Mr. J. Jeyaraj  
S. L. Channai Lal (hereinafter called "the Lessee" which expression shall  
where the context so admits, include his heirs, executors, administrators,  
representatives and permitted assigns) of the other part.

WHEREAS this deed is supplemental to the deed of lease made on the  
22nd day of January 1950 between the same parties as aforesaid  
hereto and registered at No. 298 in book No. 1 and volume No. 3  
pages 197 & 198 in the Sub-Registrar's Office at D. G. Hall, Madras  
(hereinafter called "the Principal Deed").

AND WHEREAS it has now been mutually agreed between the parties hereto  
that the principal deed shall be varied and modified in the manner herein-  
after appearing;

NOW THESE PRESENTS WITNESS and the parties hereto hereby agree as

1. That the principal Deed shall be varied and modified in the following manner:  
(a) for Clause (iv) of the Lessee's covenants, the following new  
clause were substituted:-

"to complete the said buildings within one year from the date of this  
lease (which period of one year may from time to time be extended by an officer  
appointed by the Lessor in this behalf at his discretion) to the satisfaction  
of an officer appointed by the Lessor in this behalf and maintain the premises  
and all buildings thereon in a good and dry condition according to the directions  
of the said officer;"

(b) the following additional clause shall be added as Clause (iii)(a)  
after clause (iii) of the Lessee's covenants:-

"to intimate to the Lessor within one year of the completion of  
the building the total cost incurred by him in the construction of the building.  
The lessor after receipt of this information may cause the correctness of the  
information supplied to be verified and re-assessed. The cost of construction  
as verified and re-assessed shall be deemed to be the true cost of construction

the building for the purpose of this lease, and the lease shall be subject to such verification and re-assessment;".

(c) for clause (vii) of the Lessee's covenants the following new clause were substituted:-

"during the first five years of the lease, not to sublet or to sub-divide the said land or to part with the possession thereof, or transfer by sale, mortgage, gift or otherwise the said land or building erected thereon on any part thereof, without the prior permission of the lessor in writing:-

Provided however that it shall be lawful for the Lessee with the previous approval of the lessor in writing to mortgage his interest in the said land as well as his interest in any building constructed by him or to be constructed by him on the said land as security in respect of any monies advanced by a Scheduled Bank or an Insurance Company for the purpose of constructing a building on the said land, but in every such case the Lessee shall be bound the following conditions:-

(1) The amount to be borrowed by the Lessee on the security of the said land and building shall not exceed the sum of Rs. 50 per cent of the true cost of construction of the building.

(2) If for any reason the security given by the Lessee to his mortgagee becomes enforceable within a period of five years from the date of the commencement of the lease, the lease granted to the Lessee under these presents shall, at the option of the Lessor, forthwith stand determined, and the Lessor shall be entitled to re-enter on the devised land and resume possession of the said land together with the any building standing thereon; and in the event of the Lessor exercising the aforesaid option of resumption of land and the building thereon, the Lessor's liability for payment of compensation shall be limited to:

(a) true cost of construction of the building less depreciations calculated according to the Income-tax Law for the time being in force and (b) refund of ninety five per cent of the premium, if any, paid by the Lessee to the Lessor.

The compensation payable as, aforesaid shall be apportioned between the Lessee and his mortgagee in manner following, that is to say:-

- (a) Payment of monies due to the mortgagee in discharge of the mortgage costs and other monies if any under the mortgage to the mortgagee; and
- (b) The residue, if any, to the lessee;"

2. The Principal Deed shall continue in full force and effect save as modified hereby and shall henceforth operate as though the lateration and additional hereby made were incorporated therein and the provision of the Principal Deed.

IN WITNESS WHEREOF the President of India has caused on his behalf to set his hand and the Lessee has here under set his hand the day and year first above written.

Signed by Secretary (Relief & Rehabilitation) to the  
for and on behalf of the Government, Delhi.  
President of India in the  
Presence of:-

CHECKED & FOUND CORRECT  
For Housing & Rent Officer  
DELHI, 25/6/54

1.

Signed by in  
the presence of

Housing and Rent Officer  
DELHI STATE, D. 1.

1.

2.

1. Parkash Dew Khanna  
21 D Malabar Gang  
Delhi.

(Prof. Mohan Khanna) 24/6/54  
1/1538 Chander Khanna  
Delhi

\*\*ARORA\*\*/17.6.54

2. One Parkash Mangla, Delhi  
Ganesh Khanna  
Delhi  
24/6/54

25/255

Winnipeg -  
- 100,000,000,000 -  
100,000,000,000 -  
100,000,000,000 -

day of November

different meaning, include his successors and assigns.

except when the context requires another and different meaning) of the other part;

the land fully described in the schedule hereunder appearing and contained.

all rights, easements and appurtenances to the land, and to the products, buried treasure, coal, petroleum, oil and gas, and to the land with liberty for the lessor and his lessees, licensees, assigns and assigns-in-search for, obtain an

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his purpose, or Regula

that hereinafter the rent as follows :-

an annual ground rent of Rs. 400/- (four hundred rupees) for the first year, and for the subsequent years a proportionate part of the salary of September 1948 (for the fraction of a year). The ground rent shall be paid in this behalf by the tenant, and the ground rent shall not be

be revised by an Officer appointed by the lessor, provided that such revision is not in excess of the ground rent payable under clause (a) by more than 50% of the said ground rent shall hold good for the remaining part of the said ground rent of a year ).

of each year. ( 4 p-proportionate to the by- intent that the burden shall be payable for the fraction, which the said land and may bind

of the covenants may run with the land in respect to which the  
any permitted assignee thereof for which the  
with the Lessor. specifications for the building to be erected

and shall not be authorized to make any alteration or additions to the building or to the lease hereunder, unless and until the approval of the said Officer has been obtained in writing. The Lessee shall not make any alteration and additions to the building or to the lease hereunder approved by the said Officer either externally or internally without first obtaining the permission of the said Officer in writing;

the same with the gravitating sewers and to lay on water to the said buildings, in the manner directed by an Officer appointed by the Lessor in this behalf and to employ a plumber duly approved by the said Officer to make and do all such connections and works provided that when the sewage or water systems are not extended to the said quarter at the time the said buildings are occupied or

ready for occupation, the Lessee shall, within 30 days from the extension of the sewerage and water systems to the said quarter, connect gravitating sewers and lay on water in the manner and according to the instructions and through the agency abovementioned;

(iv) to complete the said buildings within six months from the date of this lease (which period of six months may from time to time be extended by an Officer appointed by the Lessor or in this behalf) to the satisfaction of an officer appointed by the Lessor in this behalf and maintain the premises and all buildings thereon in a sanitary condition according to the directions of the said officer;

(v) not to erect more than one building upon the said land and except such outhouses and servants' quarters as may be approved by an officer appointed by the Lessor in this behalf;

(vi) not to use the said land and buildings that may be erected thereon during the said term for any purpose other than the purpose of constructing a house without the previous consent in writing of an officer appointed by the Lessor in this behalf; provided that the lease shall be null and void if the land is used for any purpose other than that for which the lease is granted not being a purpose subsequently approved by the said officer;

(vii) not to sub-divide the said land or to part with the possession or transfer by sale, mortgage gift or otherwise or to let the said land or building thereon or any part thereof;

(viii) not to do or permit anything in or upon the demised premises or any part thereof which may be or become a nuisance annoyance or cause damage to occupiers of other property in the neighbourhood.

(ix) Subject to the provisions of clause (vii) to register all changes in the possession of the whole of the said land or of the building thereon whether by transfer succession or otherwise in the register kept in the office of the Local authority (The expression Local authority shall include the Delhi Improvement Trust) for this purpose within one calendar month from the respective dates of such changes and if the lessee shall without sufficient cause neglect to register such changes in the manner aforesaid with the Lands Officer or other officer appointed by the local authority for this purpose the Lessor may impose on him for each such case of neglect a penalty not exceeding Rs. 100 and the said Lessor may in addition to the other remedies available to them under these presents enforce the payment of such penalties in the same manner as in the case of arrears of land revenue;

(x) that the Lessor and all persons acting under his orders shall be at liberty at all reasonable times in the day time during the said term to enter upon the said land or any buildings that may be erected thereon for any purpose connected with the lease;

(xi) at the determination of the tenancy to yield up the demised premises with all buildings erected thereon and landlords fixtures affixed thereto, the Lessor shall pay to the Lessee the value of the said buildings and fixtures at the date of determination of the tenancy, such value to be determined in the absence of agreement, by a sole Arbitrator agreed upon by both the parties or in the absence of such agreement by two arbitrators, one to be appointed by each party. The provisions of the Arbitration Act, 1940 and any statutory modifications thereof shall apply to any such arbitration;

(xii) If during the period of the lease the premises are required for a public purpose or for any administrative purpose by the Govt. the lessor shall, at the expiry of a notice of fifteen days to the effect that the said premises are required for such purpose to be served upon the Lessee by an officer appointed by the Lessor in this behalf, be at liberty to take possession of the land together with all buildings structures and appurtenances. The lessee shall be entitled to compensation in respect of the buildings and structures on the demised land but he shall not be entitled to any compensation for his interest in the said land except refund of a proportion of the premium. The compensation payable under this clause shall (in case of dispute) be determined by the lessor or by such officer as he may appoint for the purpose, as nearly as may be in accordance with the provisions of the Land Acquisition Act or regulations for the time being in force and the decision of the lessor or such officer shall be final and conclusive.

(xiii) any sum of money due to or claimable by the Lessor in respect of the land hereby demised shall be recoverable by the Lessor as an arrear of land revenue.

II. Provided always that if the said rent or any part thereof shall be in arrears and unpaid for one calendar month after the same shall have become due whether the same shall have been demanded or not or if the Lessee makes default in payment of any penalty imposed under these presents or becomes insolvent or, if the Lessee shall not observe and perform any of the covenants hereinbefore contained or if this lease shall become void under the provisions hereof the Lessor may notwithstanding the waiver of any previous breach or right of re-entry under this lease and take possession of this land and the building and the fixtures that may then be thereon and also initiate appropriate proceedings for recovery of rent, penalty or other sums payable by the Lessee to the Lessor under these presents.